

**UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF MINNESOTA**

JOSEPH KIRCHNER,

Plaintiff,

v.

KEITH ELLISON, in his official
capacity as Attorney General of the
State of Minnesota,

Defendant.

Case No. 26-CV-2594 (LMP/DJF)

**PLAINTIFF'S MEET-AND-
CONFER STATEMENT**

Pursuant to Local Rule 7.1(a), I, Joseph Kirchner, certify that I conferred by email with Matthew A. McGuire, Assistant Attorney General and counsel for Defendant, in a good-faith effort to resolve the issues raised by Plaintiff's Motion for Leave to File a Surreply. I wrote to Mr. McGuire on July 23, 2026, at 8:44 p.m. Central Time, describing the proposed surreply's contents and word limit and requesting Defendant's position by 12:00 noon Central Time on July 24, 2026. Mr. McGuire responded by email on July 24, 2026, at 9:02 a.m. Central Time, stating Defendant's position.

As a result of the meet-and-confer, the parties do not agree on the resolution of the motion. Defendant opposes the relief requested: counsel stated that "the proper avenue for you to address those issues is with a letter to the Court, not a surreply." The conferral narrowed the issues in one respect: counsel acknowledged "the incorrect record citations in my reply brief" and stated that Defendant "will file a correction with the Court." Following the conferral, on July 24, 2026, Defendant filed a second reply memorandum (Doc. 17), accompanied by a new word-count certificate (Doc. 17-1).

Respectfully submitted,

/s/ Joseph Kirchner

JOSEPH KIRCHNER

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Dated: July 24, 2026